



Biodiversity Beyond National Jurisdictions: Area-based Management Tools, including Marine Protected Areas

Workshop

16 – 17 May 2017

IUCN Headquarters, Gland, Switzerland

Rationale

There is significant support for the development of an implementing agreement on the conservation and sustainable use of biodiversity in the areas beyond national jurisdiction (BBNJ) under the UN Convention on Law of the Sea (UNCLOS). A preparatory committee (PrepCom) is to meet twice during 2017 to consolidate recommendations on elements for a new agreement at the UNHQ in New York building on more than a decade of discussion at the UN, and two PrepCom meetings in 2016. An implementing agreement is needed to provide an overarching framework and unifying global vision, objectives, principles and approaches for an effective conservation and sustainable use of marine areas beyond national jurisdiction (ABNJ).

Some key questions are being posed that deserve further reflection and discussion as the 2017 UNGA deadline approaches for reaching a consensus on the elements that will be the basis of an implementing agreement. In particular, amongst the four key BBNJ topics (Marine Genetic Resources, Area-based Management Tools, Environmental Impact Assessment, Capacity Building and Marine Technology Transfer), Area-based Management Tools, including Marine Protected Areas in ABNJ (ABMTs) is an important aspect of the implementing agreement as it is a critical tool particularly in the face of increasing challenges to ocean health and productivity that support our lives. At the same time better use of existing instruments and authorities through various types of ABMTs will be vital. Avenues are thus needed to stimulate the mainstreaming of biodiversity into sectoral management and cooperation within and across sectors through a new agreement.

In particular, regional approaches to ABMTs needs further reflection as implementation of a new agreement at the regional level will be key for conservation and sustainable use of marine ABNJ.

Objective of the workshop

This workshop aims to provide leading scientific, legal and policy considerations for informing UNGA discussions on 1) the role of ABMTs for advancing conservation and sustainable use pursuant to a new implementing agreement, and 2) the designation, declaration and management of ABMTs and their networks in ABNJ.

More specifically, the workshop will seek to provide concrete solutions with respect to ABMTs, by exploring possible types, objectives and management plans, procedures for the development of networks, and mechanisms for institutional cooperation and implementation. With respect to sectoral ABMTs, the workshop will explore the role of existing bodies, the value of common criteria and guidelines, and the value of overarching objectives, principles and targets.

Focusing on regional approaches in the South West Indian Ocean and the North East Atlantic will provide a useful opportunity, and concrete examples, to discuss how a new agreement could be successfully implemented in specific regions both with respect to mechanisms for MPA (networks) as well as for sectoral ABMTs and for exploring mechanisms for marine spatial planning.

Agenda

The workshop will take place over two days, with each session lasting half a day.

The agenda is following the path of concrete processes for identification, declaration, management and implementation of ABMT's.

The following transversal questions will be addressed during each session, as relevant and needed.

- Concepts and definitions of ABMTs including MPAs
- Types, roles and objectives of MPAs and sectoral ABMTs
- Importance and role of MPA networks, with regional examples

- Conservation measures currently available through existing sectoral organizations, including at regional levels
- Relations between sectoral ABMTs and "other effective conservation measures" under the CBD Aichi target 11

- Role for a global mechanism such as conference of parties
- Role of existing global sectoral bodies and regional agreements
- Role of a potential scientific advisory body and regional scientific advisory bodies
- Relationship among the various arrangements at global and regional levels

- Legal effect of a designation on parties to an implementing agreement and on third party States
- Linkages to capacity building and technology transfer
- Options for financial mechanisms

Tuesday 16th May

9:30 – 10:30

Welcome and Introduction

- Adoption of the agenda – rules of the workshop
- Introduction of participants
- General introduction
- General discussion

10:30 – 12:30

Session one: Identification and validation of potential ABMTs

- Criteria for identification of areas
- Processes for proposing ABMTs, including sources of scientific information
- Criteria for identification of ABMTs networks, including at the regional level
- Case of straddling areas within and beyond national jurisdiction, in particular at the regional level
- Ensuring availability of the necessary scientific and technical information

Lunch break 12:30 – 13:30

13:30 – 17:30

Session two: Validation, designation and declaration processes for ABMTs

- Processes for designating ABMTs, including consultative mechanisms
- Role of Marine Spatial Planning, with example at regional levels
- Potential role of EBSAs, VMEs, PSSAs, ISA/ APEI and other existing processes
- Inputs from EIAs as sources of scientific information
- Applicable guiding principles and approaches

Dinner 18:30 – 22:00

Wednesday 17th May

9:00 – 12:30

Session three: ABMTs implementation and management

- Bodi(es) for adoption and implementation of management measures, and role of regional organisations
- Role of other bodies and stakeholders
- Monitoring and review measures to be included
- Use of sectoral ABMTs for conservation purposes through the new agreement
- Cross-sectoral cooperation and coordination, including at regional level

Lunch break 12:30 – 13:30

13:30 – 15:30 Session four: ABMTs control, surveillance and compliance

- Bodi(es) for control, surveillance and compliance, and role of regional organisations
- Role of other bodies and stakeholders
- Monitoring and review measures to be included

15:30 – 16:30 Conclusions

- Next steps
- Possible future actions
- Next milestone meetings . BBNJ PrepCom4, IMPAC4, Our Ocean Malta. UNGA.

Participants

The workshop is limited to 20 to 25 participants representing a diversity of approaches to all ABMTs, including MPAs, in ABNJ.

It includes scientists, lawyers, managers, and experts from relevant organisations (list of participants in annex.)

All participants will speak under their personal capacities and Chatham House rules.

Fuller	Jessica
Garcia	Serge
Gjerde	Kristina
Halpin	Pat
Jarmache	Elie
Johnson	David
Laffoley	Dan
Lefebvre	Christophe
Martinez	Carole
Muraki Gottlieb	Hiroko
Oral	Nilufer
Rochette	Julien
Segura	Serge
Schultz	Ludovic
Simard	François
Slobodian	Lydia
Spadone	Aurélie
Tahindro	André
Waruinge	Dixon
Wright	Glen

Output

Further to the workshop, the working document, enriched by the workshop discussions and broader stakeholder's groups consultation, will be presented at the PrepCom 4 meeting (side event). From there, a final report will be prepared and presented at the Political High-level Segment of the 4th International Marine Protected Areas Congress (IMPAC4) Valparaiso, Chile, 9th September, for addressing the UNGA.